

		Plaintiff's Counsel is ordered to prepare a UD-110 form consistent with the Court's order and file it with the Clerk's office today. Plaintiff is ordered to provide notice of entry of judgment.
13	30-2026-01570055 EQR-Sombra 2008 Limited Partnership vs. Lee	The Court has read and considered the Defendant's Motion to Vacate Judgment Filed on August 17, 2026 (ROA 54) and Plaintiff's Opposition (ROA 59). The Court takes Judicial Notice of the 8/12/2026 Minute Order (ROA 42), 8/18/2026 Minute Order (ROA 43), Judgment-Unlawful Detainer (ROA 45), and Notice of Entry of Judgment (ROA 49). Mr. Lee brings his motion pursuant to California Code of Civil Procedure section 473(b), which provides, in relevant part, that "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Mr. Lee does not assert that the judgment or order at issue resulted from mistake, inadvertence, surprise, or excusable neglect. Instead, he seeks to revisit issues that were presented and adjudicated at trial. At the August 12, 2026 trial, Mr. Lee introduced Exhibit G, which is the same email attached to his motion to vacate, and argued that the email demonstrated his compliance with the notice to cure. The Court considered that evidence and argument but found that the evidence did not establish compliance with the notice to cure. Mr. Lee had the opportunity at trial to present evidence and legal arguments concerning his compliance with the notice to cure. He presented those arguments, and the Court rejected them. Section 473(b) does not provide a mechanism for a party to relitigate issues previously presented to and decided by the Court merely because the party disagrees with the result. Accordingly, the Court DENIES Mr. Lee's Motion to Vacate. The Court Clerk is to provide notice of the Court's ruling.
14	30-2020-01133177 15701 Village Way, L.P. vs. Alcaras	The Court has read and considered the Defendant's "Motion to Objection to the Memorandum of Costs After Judgment and to Dismiss the Case" (ROA 123) and Proof of Service by Mail (ROA 125). The Court takes Judicial Notice of the Claim of Exemption (ROA 105), 10/17/25 Minute Order (ROA 112), 11/14/25 Minute Order (ROA 114), 12/5/25 Minute Order (ROA 119), and 12/17/2026 Minute Order (ROA 120). The Defendant has not presented a legally cognizable motion challenging the Memorandum of Costs After Judgment. The Defendant previously filed a Claim of Exemption, which the Court considered and denied. In addition, the Defendant has not identified a legal basis or provided supporting facts sufficient to support the requested dismissal. Accordingly, the Defendant's Motion is DENIED.

		The Court Clerk is to provide notice of the Court's ruling.
15	30-2026-01592295 Cerni vs. Kirley	The Court has read and considered Kimberly Kirley's Motion to Quash Service of Summons (ROA 7). The Court takes Judicial Notice of the Court's Docket. No proof of service of summons has been filed in this matter by the Plaintiff. The Court GRANTS Ms. Kirley's Motion to Quash. The Court Clerk is to provide notice of the Court's ruling.
16	30-2026-01581097 Far West South Coast, Ltd. vs. Lopez	The Court has read and considered the Motion to Set Aside Default and Default Judgment & Quash Any Writ of Possession/Execution (ROA 61). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 14), Proof of Service of Summons (ROA 12), Request for Entry of Default (ROA 21), Judgment-Unlawful Detainer (ROA 51), and Notice of Entry of Judgment (ROA 55). A review of the Proof of Service indicates that Hannia Belmontes mailed the Motion to Set Aside Judgment on 8/14/2026 to Danielle T. Kussler at 2040 Main Street, Suite 500, Irvine, CA 92614. This Motion was not filed with the Court until 9/2/2026, so the Court would not have assigned a date on 8/14/2026. The Defendants also signed the Motion on 8/14/2026. ROA 21 shows that the Defendants were mailed notice of the request to enter default on 7/29/2026. Additionally, Judgment on this matter was not entered until 8/31/2026. The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. The Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Furthermore, the Defendants signed this motion on 8/14/2026 but waited to file it with the Court until 9/2/2026. The Court finds that, at minimum, the Defendants were aware of their default status since August 14, 2026, and inexcusably neglected these proceedings by failing to notify the Court or take any action until 9/2/2026. The Court finds that the Defendants failed to meet their burden under California Code of Civil Procedure § 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default and Default Judgment. The Court Clerk is to notify the Orange County Sheriff's Department that they may proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.